

**A TERM PAPER ON
CASES RELATING TO THE LEGAL PROFESSION IN
NEPAL**

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ABSTRACT

This paper examines the legal profession in Nepal through the study of selected case laws. It briefly outlines the historical and regulatory background of the profession and then focuses on how courts have interpreted the duties, ethics, and responsibilities of legal practitioners. The cases discussed illustrate issues such as professional conduct, conflict of interest, courtroom responsibility, and the role of advocates in the administration of justice. By analysing judicial reasoning in these decisions, the paper shows how case law contributes to defining professional standards and guiding the behaviour of lawyers. The study also highlights how courts reinforce the idea that legal practitioners are officers of the court and must act in accordance with ethical and procedural obligations. Overall, the paper demonstrates that judicial precedents play an important role in shaping accountability, discipline, and public confidence in the legal profession in Nepal.

Key words: Legal Profession; Nepal Bar Council; Professional Ethics; Legal Practitioners; Judicial Discipline; Conflict of Interest; Advocacy Standards; Administration of Justice; Legal History Nepal; Supreme Court Jurisprudence.

CHAPTER-I

CONCEPTUAL NOTION

1.1 Introduction

The term “Legal” refers to matters relating to law, that is, rules recognized and enforced by the state governing rights, duties, and procedures within a community; in jurisprudence it denotes conformity with valid norms of a legal system rather than moral approval. The word profession is derived from the Latin *professio* or *professionem* which means to make a public declaration. The term evolved to describe the calling or an occupation that required new entrants to take an oath professing their dedication to the ideals associated with the learned calling.¹ A “profession” denotes an occupation requiring specialized intellectual training, regulated standards of competence, and a commitment to public service, typically governed by ethical codes and institutional oversight. When combined, the “legal profession” signifies the organized body of trained and licensed practitioners who apply and interpret law on behalf of others and assist in the administration of justice, linking legal norms with practical dispute resolution and rights enforcement.

The legal profession is arguably the single most researched aspect of law in legal scholarship and socio-legal studies.² It is also one of the most challenging professions in the world because legal professional, for the most time, has to pass through tough process of thinking, contemplating and reasoning whether he/she is in a policymaking role, advisory service, justice dispensing role or simply representing clients at court. The legal profession may be understood in both institutional and functional terms. In its basic sense, it refers to the organized group of persons qualified to practise law within a jurisdiction. One standard definition describes it as “the body of individuals qualified to practice law in a particular jurisdiction”³, often collectively referred to as the bar or legal community. The legal profession refers to the organized body of individuals qualified and licensed to provide legal services, represent clients, and assist in the administration of justice within a legal system. It encompasses advocates, attorneys, and other authorized practitioners who apply legal knowledge in advising clients, drafting legal instruments, and participating in adjudicatory processes. From a broader scholarly perspective, the profession is conceptualized as a vocation grounded in legal expertise. It has been defined as a vocation based on knowledge of law and its application, emphasizing specialized competence in interpreting and applying legal rules.⁴

¹ Edward D. Re, *The Profession of the Law*, 15 J. Civil Rights & Econ. Dev. 109 (2000).

² MATHIEU DEFLEM, *SOCIOLOGY OF LAW: VISIONS OF A SCHOLARLY TRADITION*, Cambridge University Press, Cambridge, UK, 181 (2008).

³ “Legal profession.” *Vocabulary.com Dictionary*, Vocabulary.com, [https://www.vocabulary.com/dictionary/legal profession](https://www.vocabulary.com/dictionary/legal%20profession).

⁴ Alford, William P., Glendon, Mary Ann, Sawyer, Geoffrey. “legal profession”. *Encyclopedia Britannica*, <https://www.britannica.com/topic/legal-profession>.

Legal profession is a profession in which legal professionals study, develop and apply law. Usually, there is a requirement for someone choosing a career in law to first pass a bar examination after obtaining a law degree or some other form of legal education such as an apprenticeship in a law office.⁵ In institutional terms, the profession is regulated to ensure competence, independence, and ethical conduct in the delivery of legal services. The legal profession occupies a central position in the administration of justice in Nepal's constitutional framework. Advocates function not merely as representatives of clients but as officers of the court entrusted with safeguarding the rule of law, facilitating fair adjudication, and maintaining ethical standards in litigation. Judicial decisions concerning professional conduct provide an important doctrinal source for understanding how these responsibilities are defined, enforced, and developed in practice. The Legal Profession being a noble profession is governed not only by Legal but Ethical considerations as well. Legal professionals lie at the core of administration of justice.⁶ The legal profession plays a vital role in society, tasked with the essential duty of preserving justice, safeguarding rights, and upholding the rule of law.⁷ The profession is built on "esoteric but useful" knowledge acquired through rigorous and intensive academic training.⁸

In Nepal, the legal profession is formally structured through statutory regulation rather than mere occupational practice. The **Nepal Bar Council Act, 2050** establishes an autonomous regulatory institution for law practitioners to protect their interests and ensure responsible service to society. The Nepal Bar Council is empowered to regulate professional conduct, examinations, and practice standards under the Act and related rules.⁹ Nepalese jurisprudence has repeatedly addressed issues relating to lawyers' ethical obligations, conflict of interest, courtroom conduct, and responsibility in invoking judicial processes. Through writ jurisdiction and disciplinary review, the Supreme Court and regulatory bodies have clarified the boundaries of acceptable professional behaviour and the consequences of misconduct. Such cases demonstrate the interaction between statutory regulation, including the Nepal Bar Council Act and the Code of Conduct for Legal Practitioners and broader normative principles rooted in constitutional governance and professional integrity.

This paper examines selected decisions that illustrate the judiciary's approach to regulating legal practice. By analysing factual context, issues, judicial reasoning, and professional implications, the study seeks to identify recurring doctrinal themes shaping the legal profession in Nepal. The objective is to understand how courts conceptualize the advocate's role within the justice system and how case law contributes to maintaining professional discipline, public confidence, and institutional legitimacy.

⁵ Legal Profession, WIKIPEDIA,

⁶ Ajay Pal Singh, Historical Development of the Modern Legal Profession, 3 (4) IJLSI Page 774 - 783 (2021), DOI: <https://doi.org/10.10000/IJLSI.11981>

⁷ Xu, J. (2024). Legal Ethics and Professional Responsibility in the Legal Profession. SHS Web of Conferences, 190, 02006. <https://doi.org/10.1051/shsconf/202419002006>

⁸ Kharel, A. The Concept of Legal Profession. ResearchGate.

https://www.researchgate.net/publication/323327937_The_Concept_of_Legal_Profession

⁹ Nepal Bar Council Act, 2050 (1993), Section 8

1.2 Defining 'Legal Profession'

Herbert M. Kritzer has listed some characteristics¹⁰ to define a profession that include (but not limited to):

- Possession of esoteric but useful knowledge and skills, based on specialized training or education".
- An orientation toward service in the interest of an identifiable client.
- Autonomy of action, with regard both to the specific action (i.e., the professional is in control of the relationship with the client) and to the definition and enforcement of standards of professional behaviour.
- The existence of one or more organisations to serve the internal and external needs of the profession.

The concept of professionalism when applied to legal profession is a normative concept that provides an ideal that lawyers should strive to meet, idealized as a self-directed calling, informed by the spirit of a public service.¹¹ Kritzer has thus defined legal profession as an autonomous nature of job oriented towards public service based on specialised knowledge, skills and systematised through organisations. He has differentiated between the characters of legal professionals with that of brokers. Broker is a person hired to act as an intermediary who are motivated by their own interests either in long term or short term rather than by any moral factor or altruism. Client plays primary role in decision making for brokers and brokers are involved in regularized interaction with other players in the system. But legal professionals, on the other hand, provide advice service to client and client follows the instruction of legal professionals.¹²

Roscoe Pound described the profession as an instrument of “social engineering” translating legal norms into ordered social relations,¹³ while Lon Fuller emphasized the lawyer’s role in preserving legality through fidelity to procedural morality.¹⁴

The key issue lies in the nature of lawyers’ work. Lawyers’ work is more than that of a businessperson and thus lawyer is someone upon whom, regardless of his business acumen and methods, people conferred a status which demands higher standards and a higher commitment of self. Lawyers are not simply selling a commodity or a service. They are dealing with matters that take them deeply into the moral realms of people’s lives. Lawyers are trusted with the closest held secrets people have about themselves and the closest secrets businesses have about how they work.¹⁵

¹⁰ HERBERT M. KRITZER, *THE JUSTICE BROKER: LAWYERS AND ORDINARY LITIGATION*, Oxford University Press, New York, USA, 5-6 (1990)

¹¹ Ibid

¹² Ibid., 12-14.

¹³ Roscoe Pound, *The Lawyer from Antiquity to Modern Times* (West Publishing 1953)

¹⁴ Lon L. Fuller, *The Morality of Law* rev edn (Yale University Press 1969)

¹⁵ WALTER BENNETT, *THE LAWYER'S MYTH: REVIVING IDEALS IN THE LEGAL PROFESSION*, The University of Chicago, Chicago, USA, 90 (2001).

1.3 Legal Professionals

Legal professionals are generally understood as individuals trained, qualified, and authorized to apply law through advice, representation, or other legal services. A commonly accepted formulation describes a legal practitioner as “a professional who is qualified, licensed, and authorized to provide legal advice, represent clients, and perform legal services within a specific jurisdiction.”¹⁶ A legal professional is generally defined as an individual who possesses specialized, "esoteric" legal knowledge and skills acquired through formal education and training, and who is dedicated to the administration and maintenance of the legal system.¹⁷ Unlike a standard businessperson, a legal professional is viewed as an "officer of the court," meaning their primary duty is to uphold justice and the rule of law, often placing public service above personal profit.

Similarly, the European e-Justice Portal explains that lawyers, a principal category of legal professionals: are persons who, after registration with the relevant bar body, provide legal representation and legal advice through interpretation and application of legal rules for others.¹⁸ A lawyer as “an individual who is authorized to practice law”¹⁹ and as one whose profession is to conduct lawsuits or advise on legal rights and obligations.²⁰ Thus Legal Professionals specially, lawyers are Persons possessing legal training and authorization to practise law, who apply legal rules through advice, representation, drafting, or other services within a jurisdictional legal system.

According to the framework established by scholars like Herbert M. Kritzer and Roscoe Pound, a legal professional is defined by four essential pillars:²¹

- **Specialized Expertise:** The possession of complex legal knowledge that requires intensive academic study and often a license or "call to the bar" to practice.
- **Public Service Orientation:** The profession is a "learned calling" intended to serve the interests of clients and the public good rather than mere commercial gain.
- **Autonomy:** Legal professionals exercise independent judgment, free from outside influence, and are governed by their own standards of conduct.

¹⁶ Legal Practitioner Definition, LSD.LAW, <https://lsd.law/define/legal-practitioner>

¹⁷ Kharel, A. The Concept of Legal Profession. ResearchGate.

https://www.researchgate.net/publication/323327937_The_Concept_of_Legal_Profession

¹⁸ Types of Legal Professions, EUR. E-JUSTICE PORTAL, <https://e-justice.europa.eu/topics/find-legal-professional/types-legal-professions>

¹⁹ Lawyer, CORNELL L. SCH. LEGAL INFO. INST., <https://www.law.cornell.edu/wex/lawyer>

²⁰ Lawyer Definition, MERRIAM-WEBSTER, <https://www.merriam-webster.com/dictionary/lawyer>

²¹ See Herbert M. Kritzer, The Professions Are Dead, Long Live the Professions: Legal Practice in a Postprofessional World, 33 LAW & SOC'Y REV. 713 (1999); Roscoe Pound, The Lawyer from Antiquity to Modern Times 5–7 (1953); Roscoe Pound, The Lawyer as a Social Engineer, 3 J. PUB. L. 292 (1954); AM. BAR ASS'N, Model Rules of Professional Conduct pmbl. ¶¶ 6–12 (2020).

- **Ethical Accountability:** They are bound by a strict code of professional responsibility, including duties of confidentiality, integrity, and the avoidance of conflicts of interest.

In *Savings Bank v. Ward*, Court illustrates various qualities and duties of an attorney.²²

- Attorneys are regarded as officers of the court, performing functions that assist judicial administration, though they are not officers of the federal government.
- They may incur liability for negligence where they fail to exercise reasonable care or professional diligence in performing legal services.
- When acting with skill, reasonable care, and professional competence, they are not held responsible for every error that may arise in the course of legal practice.
- By entering the profession, attorneys represent themselves as being reasonably knowledgeable about law, procedural rules, and court practice, reflecting the competence expected of legal practitioners.
- However, they do not assert omniscience; the profession recognizes that mistakes in interpreting or applying law may occur, and liability is assessed on standards of reasonableness rather than perfection.
- Their primary duty of loyalty runs to their client, and obligations toward third parties arise only in limited or exceptional circumstances.

1.4 International Principles of the Legal Profession

Drawing upon comparative jurisprudence and professional practice across jurisdictions, the International Bar Association (IBA) adopted the *IBA International Principles on Conduct for the Legal Profession* on 28 May 2011 as a universal ethical framework for lawyers. These principles aim to provide a commonly accepted foundation upon which national codes of professional conduct may be developed. They recognize that legal practitioners must balance continuous professional competence with service to clients, respect for courts, and legitimate professional livelihood.

The principal standards embodied in the IBA framework may be summarized as follows:²³

1. Independence

Lawyers must maintain professional independence and exercise objective judgment when advising or representing clients, including candid assessment of legal prospects.

2. Honesty, Integrity, and Fairness

Legal practice requires adherence to the highest standards of truthfulness and fairness toward clients, courts, colleagues, and all professional contacts.

²² *Savings Bank v. Ward*, 100 U.S. 195 (1879), Lawyer, CORNELL L. SCH. LEGAL INFO. INST., <https://www.law.cornell.edu/wex/lawyer>

²³ International Bar Association, *IBA International Principles on Conduct for the Legal Profession* (2011), https://www.ibanet.org/document?id=IBA_International_Principles_on_Conduct_for_the_Legal_Profession

3. **Avoidance of Conflicts of Interest**

Lawyers should not act where client interests conflict with their own or those of other clients, except where permitted by law or with informed authorization.

4. **Confidentiality**

Lawyers must safeguard confidential information concerning present or former clients, subject only to lawful or regulatory exceptions.

5. **Primacy of Client Interests**

Client interests should be treated as paramount, while remaining consistent with duties to the court, justice, legality, and ethical standards.

6. **Professional Undertakings**

Commitments made during practice must be honoured promptly unless released or otherwise excused.

7. **Freedom of Representation**

Clients should be free to choose legal representation, and lawyers generally retain discretion to accept or decline instructions within legal and ethical limits.

8. **Protection of Client Property**

Property entrusted to lawyers must be accounted for faithfully and kept separate from personal assets.

9. **Competence**

Legal work must be performed diligently, competently, and within reasonable time; matters beyond capacity should not be undertaken.

10. **Reasonableness of Fees**

Lawyers are entitled to reasonable remuneration but must avoid excessive charges or unnecessary work.

CHAPTER-II

HISTORICAL BACKGROUND OF THE LEGAL PROFESSION IN NEPAL

2.1 Pre-Codification Period: Customary, Religious, and Royal Justice

2.1.1 Kirat Period: Mundhum and Community-Based Justice

In the Kirat period, governance and dispute settlement were rooted in the Mundhum, the religious and normative scripture guiding social conduct and dispute resolution.²⁴ Justice was primarily administered through local leaders such as Mukhiya or Bichari, who heard disputes at the community level. These local forums functioned as first-instance bodies: often described as “people’s courts” while the king retained ultimate authority as the final adjudicator. Although local officials conducted hearings, the king’s decisional power was not entirely unfettered; it was conceptually constrained by the normative authority of the Mundhum.

2.1.2 Licchavi Period: Institutional Differentiation and Adhikaran Systems²⁵

The Licchavi period marks a significant stage in the institutional development of law and administration. Alongside Hindu-influenced normative sources such as Manusmriti, Yajnavalkya Smriti, and principles of governance associated with Kautilya, the Licchavis developed specialized bodies known as Adhikaran to manage distinct legal and administrative functions. Key institutions included:

- Kuthar (revenue administration)
- Sulli/Solla (criminal or coercive functions)
- Ligwal/Lingwal (agriculture and irrigation-related disputes)
- Mapchok/Mapchowk (family and domestic disputes)
- Bhattadhikaran (additional institutional forum noted in historical accounts)

Local governance also included administrative units such as Gram, Panchali, Tala, Kotta, and Dranga, which supported dispute handling and administrative order. At the higher level, adjudication was linked with the royal court; officials such as Pratihara and higher palace officers played roles in presenting disputes and managing legal affairs. This period thus shows early differentiation of legal functions and institutional pathways that indirectly facilitated the emergence of proto-legal roles.

²⁴ Tripathi, Rewati Raj . Nepalese Legal System :A Jurisprudential & Comparative Appraisal .Exhibition Road: Lumbini Prakashan ,2011.

²⁵ Maina Majhi, History of Legal Profession in Nepal, ResearchGate, https://www.researchgate.net/publication/395335912_History_of_legal_profession_in_Nepal.

2.1.3 Malla Period: Panchayat Justice, Formal Courts, and Early Codification²⁶

The Malla era intensified the system of local justice through Panchayat bodies. Two broad forms are described in historical accounts: Pancha bodies (ordinary matters) and Pancha Samuchaya (special or serious matters), with broader assemblies convened for significant issues. In the Kathmandu Valley, institutional courts are commonly identified:

- Kottilinga (criminal jurisdiction)
- Itachapali (civil jurisdiction)

Another major development is attributed to King Jayasthiti Malla, who promulgated Manab Nyayashastra, regarded as one of the earliest codified legal frameworks of the state. While deeply influenced by the socio-religious order of the time, this codification represented a transition from purely customary justice toward structured legal governance.

2.1.4 Shah Period: Foundations for Centralized Justice and Early Advocacy Roles²⁷

The Shah era contributed to centralization and institutional refinement of justice. The reign of Ram Shah is often associated with the popular maxim “Go to Gorkha when justice is lost,” reflecting perceptions of structured justice administration. During this period, officials such as Ditha, Bichari, and Dharmaadhikari were entrusted with adjudicatory functions. Panchayat bodies remained important at local level, while serious disputes could reach royal authority.

A notable institutional shift in this period is the emergence of an early form of representation: the ability to appoint an “attorney” or representative for pleading, supported by allowances. Although this does not equate to a modern legal profession, it illustrates early recognition of representation as a procedural necessity and marks a conceptual precursor to professional advocacy.

2.2 Codification as a Turning Point: Muluki Ain 1910 B.S. (1854 A.D.)

The promulgation of the Muluki Ain 1910 B.S. (1854 A.D.)²⁸ by Jung Bahadur Rana constitutes a foundational milestone in Nepal’s legal history.²⁹ It consolidated civil and criminal norms into a comprehensive written code and introduced procedural structure alongside substantive rules. Importantly, codification created predictable legal categories, fixed forums of adjudication, and standardized procedures, conditions necessary for the growth of legal drafting, pleading, and professional representation.

²⁶ Shrestha, Ghayendra Bahadur. Nepal Ko Kaanoni Itihas ko Ruprekha. Kathmandu : Pairavi Prakashan , 2044

²⁷ Ibid

²⁸ Muluki Ain, 1910 B.S. (1854 A.D.) (Nepal), Nepal Law Commission Repository, <https://repository.lawcommission.gov.np/np/wp-content/uploads/2021/08/मुलुकी-ऐन-१९१०.pdf>

²⁹ Rewati Raj Tripathi, Nepalese Legal System: A Jurisprudential and Comparative Appraisal (Lumbini Prakashan 2011).

In this period, “lawyering” was still not fully professionalized. Litigants often represented themselves or relied on pleaders and agents with practical courtroom experience rather than formal legal education. The earliest professional activity largely took the form of document drafting and procedural assistance. Section 16 of the Court Management Chapter of the Muluki Ain 1910 B.S. permitted a party to bring before the court a person who knew the facts of the case, effectively allowing appointment of such a person to assist in presenting the matter.

2.3 Post-Codification and Institutional Professionalization

2.3.1 Early Modern Developments (Up to 2007 B.S.)

Before democratic reforms, institutional separation between executive and judiciary remained weak, and legal functions were often embedded within executive power. A limited procedural recognition of representation existed, such as provisions enabling parties to bring a knowledgeable person to assist in case presentation. These features indicate the gradual emergence of representation as a functional legal necessity, even before full professional regulation.³⁰

2.3.2 Democratic Transition and Court Modernization (2007–2013 B.S.)

After 2007 B.S., political change accelerated legal modernization. The establishment of Pradhan Nyayalaya (Supreme Court)³¹ and the introduction of institutional offices such as the Attorney General reflected a growing commitment to a structured justice system. The Pradhan Nyayalaya Act, 2008 B.S. and subsequent rules contributed to formal court organization. Pradhan Nyayalaya Act, 2008 introduced the precedent and writ system in Nepal.³² Hari Prasad Pradhan became its first Chief Justice. The Interim Constitution of 2007 B.S. created the office of the Attorney General, and the Pradhan Nyayalaya Act, 2008 B.S. further developed legal provisions concerning courts and legal practitioners. Subsequent instruments, including the Supreme Court Rules 2013 B.S. and the Legal Practitioners Act 2025 B.S., laid the structural foundation of the legal profession. Prior to 2013 B.S., individuals who drafted legal documents were not permitted to engage in courtroom advocacy; instead, other document writers (Lekhandas) could appear for advocacy, and no comprehensive legislation existed to regulate or develop the profession.

2.3.3 Supreme Court Regulation 2013 B.S.: Categorization of Legal Practitioners

A major step toward professional regulation occurred with the Supreme Court Regulation/Rules 2013 B.S., following the institutional transformation to Sarbochcha Adalat. This framework formally categorized legal practitioners into:³³

³⁰ Shrestha, Ghayendra Bahadur. *Nepal Ko Kaanoni Itihas ko Ruprekha*. Kathmandu : Pairavi Prakashan , 2044

³¹ <https://supremecourt.gov.np/pradhanNayalaye/>

³² Lokindra Hari Bhattarai, *Shifting of Governance and Justice: A Reference of Nepal*, 10 MOLUNG EDUCATIONAL FRONTIER 121 (2020), <https://doi.org/10.3126/mef.v10i0.34078>

³³ Maina Majhi, *History of Legal Profession in Nepal*, ResearchGate, https://www.researchgate.net/publication/395335912_History_of_legal_profession_in_Nepal.

1. Senior Advocate
2. Advocate
3. Pleader
4. Agent

The rules also introduced criteria concerning qualifications, discipline, and remuneration, providing an institutional base for professional identity and regulation.

2.3.4 Legal Practitioners Act 2025 B.S.: Statutory Foundation of the Profession

The Legal Practitioners Act 2025 B.S. further strengthened the statutory structure of legal practice. It clarified categories of practitioners, addressed licensing and disqualification, and introduced regulatory provisions concerning misconduct and professional standards. It also reflected a shift from informal courtroom assistance to legally recognized categories of practice.

2.4. Institutional Consolidation: Bar Association and Bar Council

2.4.1 Nepal Bar Association: Professional Organization

Professional organization developed alongside statutory change. Historical accounts note efforts from early periods to create collective institutions representing legal practitioners, culminating in an organized bar association structure. The Nepal Bar Association increasingly played a role in advocating for professional interests, legal reforms, and judicial independence.

2.4.2 Nepal Bar Council Act 2050 B.S. and Code of Conduct 2051 B.S.: Modern Regulatory Framework

The modern legal profession in Nepal became fully institutionalized through the Nepal Bar Council Act 2050 B.S. (1993 A.D.), which established the Bar Council as the statutory regulatory authority. Core functions include:³⁴

- conducting licensing examinations,
- issuing practice certificates,
- maintaining professional standards and discipline,
- regulating conduct and imposing sanctions, and
- providing training, seminars, and capacity-building.

Following this, the Code of Conduct for Legal Practitioners, 2051 B.S. established formal ethical duties and professional discipline to ensure integrity, competence, confidentiality, avoidance of conflicts of interest, and respect toward courts and justice administration.

³⁴ Nepal Bar Council Act, 2050 (1993), Section 8

Contemporary classification generally recognizes Senior Advocates, Advocates, and Pleaders, although examinations for pleaders have declined due to changes in legal education pathways. Provisions for agents exist but are less commonly utilized in practice.

As of Now The Rules of Professional Code of Conduct of Legal Practitioners, 2079 (2023)³⁵ were promulgated by the Nepal Bar Council pursuant to the authority granted under Section 27 of the Nepal Bar Council Act, 2050 (1993). These Rules came into force upon approval by the Supreme Court on 1 March 2023. With their enforcement, the earlier Code of Conduct for Legal Practitioners, 2051 (1994) was repealed and replaced by the updated regulatory framework governing professional ethics and conduct of legal practitioners in Nepal.

³⁵ Nepal Bar Council, Rules of Professional Code of Conduct of Legal Practitioners, 2079 (2023) (Nepal), issued under Nepal Bar Council Act, 2050 (1993)Section 27.

CHAPTER-III

CASES RELATING TO THE LEGAL PROFESSION IN NEPAL

3.1 Case I

Adv. Kanti Ram Dhungana (on behalf of Adv. Chiranjivi Dhakal) v. Metropolitan Police Premises, Teku et al.³⁶

Facts

During the COVID-19 lockdown, Advocate Chiranjivi Dhakal was denied access to consult with a client in police custody. The refusal raised concerns regarding continuity of legal representation and due process protections during emergency restrictions (as summarized in the presentation, pp. 3–6).

Issues

Whether denial of access to counsel during an emergency situation violates constitutional guarantees of legal representation.

Whether state restrictions justified by public safety can override procedural safeguards in criminal detention.

Judgment

The Supreme Court issued habeas corpus relief and affirmed that consultation with legal counsel constitutes a fundamental and non-derogable safeguard. The Court emphasized that even under emergency conditions, procedural fairness cannot be suspended .

Reasoning

The decision reflects constitutional principles protecting personal liberty and fair trial rights. Legal consultation was treated as integral to preventing arbitrary detention and ensuring meaningful defence preparation.

Relevance to Legal Profession

The ruling reinforces the institutional role of advocates as guardians of due process. It confirms that professional access to clients is not merely procedural convenience but a structural component of rights protection. This strengthens professional autonomy and underscores state duties to facilitate lawyer–client interaction during crises.

3.2 Case II

Adv. Punya Prasad Gautam v. Kathmandu District Court et al.³⁷

Facts

³⁶ *Adv. Kanti Ram Dhungana v. Metropolitan Police Premises, Teku et al.*, NKP 2077, vol 4, DN 10479.

³⁷ *Adv. Punya Prasad Gautam v. Kathmandu District Court et al.*, NKP 2076, vol 3, DN 10215.

A dispute arose concerning the issuance of a court summons relying primarily on the advocate's licence number for identification rather than additional personal details .

Issues

Whether a notice issued solely on the basis of professional identification satisfies procedural legality.

Whether minimal identification standards undermine reliability of legal communication.

Judgment

The Court validated the notice, holding that identification through an advocate's professional title and licence number is legally sufficient .

Reasoning

The Court considered licensing records authoritative identifiers within the judicial system. Recognizing such identification streamlines procedure while preserving accountability through regulatory oversight of advocates.

Relevance to Legal Profession

This precedent clarifies the evidentiary and procedural recognition of professional status. It affirms the institutional credibility attached to licensing and reminds practitioners of compliance obligations associated with official identification.

3.3 Case III

Adv. Achyut Prasad Kharel v. Office of the Prime Minister et al.³⁸

Facts

A public interest litigation challenged killings and amputation of yak not criminalized under existing statutory law. The petition raised questions regarding admissibility and scope of PIL intervention.

Issues

Whether courts should entertain PIL petitions addressing matters lacking clear legal foundation.

Whether advocates may expand PIL scope beyond substantive legal controversies.

Judgment

The Supreme Court declined to issue mandamus, emphasizing that PIL jurisdiction must not be misused for trivial or legally unfounded matters. It is not befitting for a responsible legal practitioner to waste the valuable time of this court for cheap popularity by making unnecessary arguments and inquiries based on impossible and imaginary matters.

Reasoning

³⁸ *Adv. Achyut Prasad Kharel v. Office of the Prime Minister et al.*, NKP 2075, vol 3, DN 9982.

The Court stressed judicial restraint and doctrinal discipline, asserting that PIL should advance genuine public rights rather than speculative or abstract grievances.

Relevance to Legal Profession

The decision delineates ethical and professional limits on litigation strategy. Advocates bear responsibility to ensure PIL filings remain grounded in substantive legal issues, thereby preserving judicial credibility and preventing institutional overload.

3.4 Case IV

Dalit NGO Federation (DNF) v. Government of Nepal³⁹

Facts

The matter arose in writ proceedings before the Supreme Court of Nepal involving *Dalit NGO Federation (DNF) v. Government of Nepal*. During the course of hearing, the Court examined not only the substantive claims raised in the petition but also the conduct of legal practitioners representing the petitioners. The bench observed concerns relating to attendance, cooperation with the court, and respect for procedural management of hearings. Despite repeated calls by the Court, representatives of the petitioners did not appear to assist in clarifying issues raised in the writ petition, prompting judicial scrutiny of professional obligations toward the court.

Issues

1. Whether failure of legal practitioners to attend hearings and assist the bench constitutes a breach of professional duty.
2. Whether conduct that obstructs or delays the hearing process undermines judicial administration and violates professional ethical standards.

Judgment

The Court concluded that the conduct of the petitioners and their counsel fell short of the duties expected of legal practitioners. It held that obstructing or failing to support hearing proceedings is inconsistent with professional ethics and incompatible with the status of advocates as officers of the court.

Reasoning

The Court reasoned as follows:

1. **Status of Advocates as Officers of the Court**
It reaffirmed that advocates, while representing clients, also function as institutional collaborators in the administration of justice. This role characterizes them as officers of the court, imposing duties of decorum, respect toward the bench, assistance in proceedings, and facilitation of courtroom management.
2. **Ethical and Normative Framework**
The Court referred to governing standards of professional conduct, particularly:
 - The **Code of Conduct for Legal Practitioners, 2051 B.S.**, which requires timely appearance, cooperation with courts, and avoidance of conduct that impedes resolution of cases.

³⁹ *Dalit NGO Federation (DNF) v. GON*, NKP 2065, vol 50, issue 5, DN 7961.

- The **UN Basic Principles on the Role of Lawyers (1990)**, which recognize lawyers' freedom to raise issues relating to law and justice administration but require exercise of that freedom within the bounds of law and professional ethics. From these sources, the Court derived that professional privilege must operate within institutional responsibility.

3. **Obstruction of Hearing as Misconduct**

The bench held that disruption or obstruction of hearings interferes with adjudication and therefore violates professional obligations. Non-appearance or lack of cooperation causes delay, prejudices litigants, and undermines access to justice. The failure of the petitioners' representatives to appear despite repeated calls was treated as non-fulfilment of professional responsibility.

Relevance to the Legal Profession

This decision clarifies three propositions concerning professional practice in Nepal:

1. **Institutional Role Doctrine:** Advocates are not only client representatives but participants in the administration of justice.
2. **Duty of Cooperation:** Professional ethics impose affirmative duties of attendance, assistance, and respect toward judicial proceedings.
3. **Public Interest Dimension :** Obstruction of hearings affects courts and litigants alike, linking professional conduct directly to access to justice.

3.5 Case V

Advocate Chandan Raj Regmi v. Lay Prasad Baskota et al.⁴⁰

Subject: Violation of Code of Conduct for Legal Practitioners

Facts

A complaint was filed before the Nepal Bar Council Disciplinary Committee alleging that Advocate Chandan Raj Regmi violated the Code of Conduct for Legal Practitioners, 2051. He signed as drafter on both the plaint and reply in the same defamation case pending in Panchthar District Court. The complainant alleged misuse of licence and professional misconduct. The advocate admitted signing both documents but argued it occurred due to human error and without intent, and that no harm resulted. The Disciplinary Committee found misconduct and suspended his licence for six months. He appealed to the Supreme Court challenging the proportionality and legality of the punishment.

Issues

Whether signing/drafting pleadings for both plaintiff and defendant in the same case constitutes professional misconduct.

Whether the disciplinary sanction (six-month suspension) imposed by the Bar Council was justified.

Judgment

The Supreme Court upheld the Disciplinary Committee's decision. The appeal was dismissed.

⁴⁰ *Advocate Chandan Raj Regmi v. Lay Prasad Baskota* , Case No. 075-MS-0021.

The six-month suspension of the advocate's licence to practice law was confirmed.

Reasoning

Rule 3(1)(x) of the Code of Conduct prohibit representation or drafting for both sides in the same case. (*In present , Rules of Professional Code of Conduct of*

Legal Practitioners, 2079 (2023) , Rule 7 prohibits drafting of legal documents of both opposing party)⁴¹

Documentary evidence showed the advocate signed both pleadings as drafter. He failed to produce evidence disproving involvement. Such conduct breaches professional ethics regardless of absence of proven harm. The law allows sanctions ranging from warning to licence cancellation; considering mitigating factors (admission, lack of proven harm, no repeated misconduct), suspension rather than cancellation was appropriate.

Relevance to Legal Profession

Reinforces conflict-of-interest prohibition in legal practice.

Emphasizes accountability for professional signatures and drafting roles.

Confirms disciplinary oversight authority of the Bar Council.

Demonstrates that ethical breach alone (even without client harm) may justify sanction.

3.6 Case VI

Rajendra Yadav v. Land Revenue Office, Mahottari ⁴²

Facts

The petitioner filed a writ petition invoking the Supreme Court's extraordinary jurisdiction against the Land Revenue Office. During adjudication, the Court addressed broader concerns regarding the use of writ jurisdiction and the role of legal practitioners in bringing cases before courts. The decision emphasized professional responsibility in discouraging unnecessary litigation and ensuring justice-oriented practice.

Issues

What is the role and responsibility of legal practitioners when invoking extraordinary constitutional jurisdiction?

Whether misuse or unnecessary invocation of judicial remedies affects administration of justice and governance.

Judgment

The Court reiterated normative principles concerning legal practice rather than focusing solely on individual relief.

⁴¹ Nepal Bar Council, Rules of Professional Code of Conduct of Legal Practitioners, 2079 (2023), Rule 7

⁴² *Rajendra Yadav v. Land Revenue Office, Mahottari*, NKP 2072, vol 57, issue 6, DN 9422.

It emphasized that legal practice must remain justice-oriented and should not promote unnecessary litigation.

Lawyers are expected to assist in preventing abuse of judicial process.

Reasoning

Lawyers are described as carriers of rule of law, guardians of justice, supporters of good governance, and agents of social change.

The legal profession is distinct from other occupations and must remain guided by justice rather than adversarial opportunism. Practitioners are expected to facilitate accessible justice and discourage the filing of unnecessary or ill-motivated litigation that burdens courts and affects genuine seekers of justice. Excessive or ill-motivated litigation burdens courts and harms genuine seekers of justice. Law and ethics are closely interconnected and inseparable in practice, both contributing to the promotion of human values and professional integrity

Although ethics cannot always be measured by fixed standards, their importance cannot be diminished, and no profession particularly law can function without them. Clarity in jurisdiction enables faster and more efficient adjudication, benefiting litigants, lawyers, and all stakeholders in the justice system. Because Lawyers play a crucial role in preventing misuse of extraordinary jurisdiction, they must exercise diligence and responsibility in this regard.

Relevance to Legal Profession

Affirms the justice-oriented nature of advocacy.

Emphasizes ethical screening of cases before filing.

Connects professional responsibility with judicial efficiency and governance.

Reinforces the idea that lawyers shape public trust in the legal system.

3.7 Case VII

Advocate Sapana Pradhan Malla vs Government of Nepal⁴³

Facts

The petition was filed as a public interest litigation seeking directive orders to enact and implement laws protecting the right to privacy, particularly for women, children, and persons affected by HIV/AIDS in judicial and investigative processes. The petitioner organization was not itself a victim of privacy violation but worked in advocacy for vulnerable groups' legal rights.

The claim was grounded on constitutional guarantees of dignity, equality, and privacy, along with international human rights instruments. The petition highlighted deficiencies in legal and

⁴³ *Adv. Sapana Pradhan Malla (on behalf of Forum for Women, Law and Development) v. GON et al*, NKP 2064, Vol 9, DN 7880.

procedural frameworks, including exposure of identities during investigation, court proceedings, and publication of judgments.

Existing legal provisions allowed limited privacy protection through closed hearings and procedural restrictions under criminal and child-related statutes, yet gaps remained in safeguarding identity in court records and proceedings.

Judgment

The Supreme Court issued a directive order requiring the Government to initiate legislative measures ensuring confidentiality protections for vulnerable victims in legal proceedings. The Court further directed formation of a consultative mechanism involving relevant stakeholders, including the bar and civil society, to recommend legal frameworks. Interim guidelines were also considered permissible until comprehensive legislation is enacted.

Reasoning

- The Court emphasized that privacy is foundational to dignity and equality and is recognized both constitutionally and in international human rights law.
- Courts possess inherent authority to adopt protective procedural mechanisms to ensure effective access to justice.
- Effective implementation of closed hearings requires professional sensitivity and competence among judges, court staff, and legal practitioners, including respect for confidentiality obligations extending beyond courtroom proceedings.
- Lawyers play a critical role in protecting victims' identities, ensuring procedural fairness, and balancing privacy with the accused's defence rights.
- Professional responsibility includes maintaining confidentiality, promoting victim participation, and assisting courts in managing sensitive proceedings.

Relevance to the Legal Profession

- Reinforces advocates' ethical obligation to protect confidential information in sensitive cases.
- Highlights the profession's role as facilitator of access to justice for vulnerable groups.
- Emphasizes the need for professional competence and sensitivity in closed-hearing procedures.
- Demonstrates how judicial interpretation shapes advocacy standards and professional duties toward both client protection and fairness of trial.
- Recognizes the legal profession as a stakeholder in law reform processes relating to procedural safeguards.

3.8 Case VIII

Janachetana Law Firm Pvt. Ltd. v. Revenue Investigation Department & Others⁴⁴

Facts

⁴⁴ NKP 2073, Vol 58, DN 7611.

The petitioner, Uddhav Kumar K.C., a registered advocate under the Nepal Bar Council Act, 2050, operated Janachetana Law Firm Pvt. Ltd., registered under the Companies Act, 2063, in Dillibazar, Kathmandu. He claimed to have been a regular taxpayer, having obtained a tax clearance certificate for FY 2068/069 and being within the statutory deadline to file the return for FY 2069/070.

On 2070/05/21, a team of 10–15 officials from the Revenue Investigation Department (RID), accompanied by armed and plainclothes police, entered the petitioner's law firm without prior notice. The team presented an order authorizing search and seizure on grounds of suspected revenue leakage. They seized the firm's company deed, articles of association, land sale deeds, audit reports and other confidential documents. The petitioner was subsequently summoned to appear at the RID on 2070/05/25.

Evidence on the record disclosed that the Commission for Investigation of Abuse of Authority (CIAA) had, on the same date (2070/05/21), written to the RID directing investigation against the petitioner based on an anonymous complaint. The RID dispatched a search team to the law firm on the very same day, without giving the petitioner any opportunity to respond or explain.

The petitioner alleged that the action was retaliatory taken because he had publicly criticized the appointment of the then Chief Commissioner of the CIAA and that it violated his constitutional rights to livelihood, personal liberty, freedom of expression, equality before law, right to privacy, and the constitutionally guaranteed privilege of lawyer–client confidentiality.

Issues

1. Whether the search and seizure conducted at the petitioner's law firm by the RID was lawful and procedurally valid.
2. Whether the CIAA acted within its constitutional jurisdiction in directing the RID to investigate the petitioner on the basis of an anonymous complaint relating to tax matters.
3. Whether the RID had jurisdiction to conduct the search under the Revenue Leakage (Investigation and Control) Act, 2052, when specific procedures were prescribed under the Income Tax Act, 2058 and Value Added Tax Act, 2052.
4. Whether the lawyer–client privilege and the confidentiality of communications between the petitioner and his clients were infringed upon by the search and seizure.
5. Whether the search and seizure was directional, motivated by mala fide intent or political vendetta, and therefore vitiated.

Judgment / order

The Court issued a **writ of mandamus** with the following directions:

1. The CIAA is directed to **refrain from conducting or directing** investigations outside its constitutional jurisdiction; it shall act only within the limits prescribed by the Constitution and law, following due procedure.
2. The RID is directed to **conduct its investigative functions** only on the basis of information and investigation lawfully obtained and within its own legal authority, acting with discretion and in accordance with law and not otherwise.
3. The Court further cautioned all lawyers that paying taxes in accordance with law is both a **legal duty and a professional obligation**, and that all legal practitioners must remain

conscientious in registering as taxpayers, regularly maintaining income records, and paying taxes as prescribed.

4. The Court additionally cautioned the RID that it must not interfere in matters falling within the jurisdiction of the income tax administration without minimum prior inquiry and reasonable basis.

Reasoning

The Court held that lawyers, like all professionals, are legally obliged to pay taxes on their income, but coercive measures such as search and seizure must follow due process. An anonymous complaint alone cannot justify a raid; authorities must conduct a minimum preliminary inquiry to verify its credibility. The Court found that the Commission for the Investigation of Abuse of Authority acted beyond its constitutional mandate by directing tax investigation despite the matter falling within the jurisdiction of the Inland Revenue Department and Revenue Investigation Department. Because law firms hold confidential client documents, searches of a lawyer's office require heightened justification to protect lawyer-client privilege and the constitutional right to legal counsel. The Court also noted that the same-day directive and raid suggested mala fide intent, especially as no prior tax proceedings existed. Failure to file a tax return does not automatically amount to criminal tax evasion, and ordinary tax administration mechanisms should be used before invoking the severe powers under the revenue leakage law. The Court further criticized the contradiction between the CIAA's written denial and its own directive letter on record and emphasized that the state must primarily ensure transparent and predictable tax administration rather than relying on sudden coercive raids.

3.9 Case IX

Rabindra Shrestha et al. v. Government of Nepal, Ministry of Health and Population et al.⁴⁵

Citation: Rabindra Shrestha v Government of Nepal,

Facts:

The petitioners, including Rabindra Shrestha, a laboratory technician working at the National Academy of Medical Sciences (Bir Hospital), challenged certain statutory provisions governing employee classification and promotion (level-upgradation). They argued that the legal framework created discriminatory treatment among government employees and was inconsistent with the Constitution.

Holding:

The writ petition was dismissed. The Court refused to declare the law unconstitutional. The Court reiterated that legislation enacted by the legislature enjoys a **presumption of constitutionality**. The burden lies on the petitioner to clearly demonstrate inconsistency with the Constitution. The Court also applied the principle of **reasonable classification**, holding that intelligible and rational classification among employees is permissible in law. Matters concerning the organizational structure and classification of government employees fall largely within **state policy**, and the judiciary will not interfere unless the classification is manifestly arbitrary or unjust. The Court emphasized that judicial review is limited to determining whether

⁴⁵ NKP 2073, Vol. 58, Jestha, Issue 2, Decision No. 9538

a law clearly contradicts the Constitution; the Court cannot rewrite, amend or improve legislation because doing so would violate the doctrine of **separation of powers**.

The Court observed that repeatedly raising issues that have already been adjudicated results in an unnecessary waste of the Court's time as well as the nation's resources and labour. At a time when the Court is under significant pressure to deliver timely justice to genuine victims, it cannot tolerate attempts to delay or distract the judicial process by bringing trivial grievances under the pretext of minor inconveniences. The writ jurisdiction is not intended to address such minor complaints. In this regard, the Court emphasized that legal practitioners representing petitioners have an important responsibility to exercise professional judgment before invoking the Court's extraordinary jurisdiction.

3.10 Case X

Advocate Bharat Kumar Lakai & Others v. Nepal Government, Ministry of Industry⁴⁶

Facts: The petitioners challenged Sections 3, 4, 6, and 9 of the Company (Electronic Filing) Directives, 2069, which required submission of documents to the Office of the Company Registrar exclusively through online means. They argued that this violated public interest by denying the option to submit documents in person and sought a direction allowing submissions by any method.

Decision: As the present era has been media era and that not only an individual may not arrange time to attend the concerned office in person to furnish the essential details, it is burdensome as well, most of the governmental, non-governmental and corporations have recognized online service initiating the move to establish a paperless office.

It has not been matching to the youth lawyers of 21st Century like these petitioners to file the petition as such in the current context to halt the online process and services in place of encouraging their own client for the same.

Significance: The Court recognized the importance of digitalization and the role of lawyers in facilitating client compliance with online legal procedures. Hence, it appeared that the court hinted the lawyers to support online process but spoke nothing on the main context of the petitioner that other means shall also be accepted for those who want to submit details in person.

3.11 Case XI

Ram Lakhan Yadav v. Kathmandu District Kathmandu and Others⁴⁷

In this case, the petitioner filed a petition stating that he was not served notice in the loan transaction case, that was unilaterally decided posing financial burden upon him. He sought to set aside the notice, decision, and action of recovery. The respondent replied that lawyer of petitioner already had copy of decision and petition was lately filed. Hence, one of the issues

⁴⁶ NKP (2072), Vol. 57, Chaitra, No. 12, Decision No. 9509

⁴⁷ NKP (2072), Vol. 57, Bhadra, No. 5, Decision No. 9396

of the case was that whether or not the copy of decision taken by a lawyer affects the limitation, right, and interest of the parties.

Reasoning

Whereas the application for copy of decision by the advocate reveals that it was taken for study. The said Advocate is not seen to have been appointed as lawyer by the writ petitioner from the file. Therefore, the argument of the legal practitioner representing the opponent that the petition was suffered from latches (supposed to be filed from the date of having a copy by the legal practitioner) is not convincing.

In this way, the court has established explicit principle that a lawyer who takes copy of decision for study purpose without being appointed by the client affects nothing on the limitation, right, and interest of his/her party.

3.12 Case XII

Ram Prasad Prajapati and Others v. Chairperson, Nepal Bar Association, Central Executive Committee, Ram Shah Path, Kathmandu⁴⁸

The Nepal Bar Association, established on 22 December 1956, is the sole professional organization of Nepalese lawyers and is recognized by the Constitution of Nepal, allowing it to send a representative to the Judicial Council that recommends appointments of judges in all courts of Nepal.

In this case, the petitioners challenged the arrangement requiring a fee for filing candidacy in the Nepal Bar Association elections. According to the petitioners, the prescription of an expensive candidacy fee infringed the fundamental right to file candidacy and participate in the elections, and therefore it should be set aside. The petition was filed under writ jurisdiction. The primary question was whether the Constitution of the Nepal Bar Association could be treated as law of Nepal.

The court quashed the writ petition, laying down the following precedent:

Since the Nepal Bar Association Constitution, 2048, and the Nepal Bar Association Bylaw, 2049, were made following decisions of the Central Convention of the Nepal Bar Association, and the Bylaw, 2049, is an instrument framed under the same constitution, the said constitution cannot be conceived as equivalent to law pursuant to Article 133(2) of the Constitution.

As the writ petition was filed for enforcement of rights under the Constitution of Nepal Bar Association, 2048, and the Bylaw of Nepal Bar Association, 2049, and these instruments cannot be termed as the prevalent law of Nepal, no conclusion could be drawn in favor of infringement of the legal rights of the petitioners.

In laying down this precedent, the court relied on *Advocate Sukdev Gautam v. the then Chairperson of Nepal Bar Association, Appellate Court Bar Unit, Pokhara, Bishnu Kushal Bhujel and Others*, in which the same principle was upheld.

⁴⁸ Nepal Kanoon Patrika (2072), Vol. 37, Chaitra, No. 12, Decision No. 9518

3.13 Case XIII

Advocate Sukdev Gautam v. the then Chairperson of Nepal Bar Association, Appellate Court Bar Unit, Pokhara, Bishnu Kushal Bhujel and Others⁴⁹

- The Nepal Bar Association Constitution, 2048, and Bylaw, 2049, were instruments created by the Association itself, not by legislative enactment or delegated legislative authority. Therefore, they cannot be considered “law” under the Constitution.
- Since the petitioner filed the writ claiming enforcement of rights under these instruments, no deprivation of legal rights occurred, and the writ petition cannot succeed.
- This principle is consistent with *Som Prasad Pudasaini v. Nepal Family Planning Association*⁵⁰ which held that internal constitutions or bylaws of associations, not enacted by law or delegated authority, cannot be treated as law under Constitution.

3.14 Case XIV

Advocate Rajan Burlakoti vs Nepal Bar Council, Kupandol, Lalitpur⁵¹

Fact

- Under Section 20 of the Nepal Bar Council Act, 2050, the Council is mandated to maintain and update the register of licensed lawyers. This provision does not discriminate based on whether a lawyer is a member of a Bar unit, whether they are in Nepal or abroad, or any other criteria.
- Rule 13(2) of the Nepal Bar Council Internal Management Rules, 2055 requires that a lawyer seeking update of license for the first time must submit the application through the Bar unit of which they are a member.

Petitioner’s Claim:

- The rule effectively forces lawyers to become members of a particular Bar unit, thereby infringing their freedom of association under Article 12(3)(g) of the Interim Constitution, 2063 and the right to organize under Article 30(2).
- Forcing membership violates international customary law and the Universal Declaration of Human Rights, 1948 (Article 20(2)).
- Doctrine of Ultra Vires: The Council has no authority to issue rules contrary to constitutional freedoms.

Respondent’s Argument:

⁴⁹ NKP 2060, Vol. 45, Bhadra, Decision Number: 7236

⁵⁰ NKP 2052, Vol. 37, Decision No. 5078

⁵¹ NKP 2071, Vol. 56, Decision Number: 9254

- Rule 13(2) is procedural, aimed at ensuring accurate and updated records of licensed lawyers, and facilitating smooth administration.
- The rule does not restrict professional rights or prevent lawyers from practicing law.
- It ensures the Council can efficiently maintain records of Bar membership and professional details.

Court Conclusion

- Rule 13(2) of the Internal Management Rules, 2055:
 - Procedural, aimed at maintaining accurate lawyer records.
 - Does not violate the Constitution or exceed the Council's authority.
- In some cases, a practicing lawyer may not be affiliated with any Bar unit due to personal reasons or other circumstances, and it cannot be assumed that every lawyer is necessarily a member of some Bar unit.
- Because the Council did not account for such possibilities, lawyers could be deprived of the ability to practice their profession or register firms, merely because of procedural formalities like certification facilitation. Such justification alone is insufficient to restrict rights.
- Lawyers who, for exceptional reasons, cannot submit their registration/update through a Bar unit may directly apply to the Council with the necessary documentation. The Council shall accept and update such records based on available information, without causing procedural obstruction.

3.15 Case XV

Toya Nath Dhungana v. Secretariat of Judicial Council and others⁵²

Key Issues:

1. **Validity of the Judge Appointment (Procedure) Criteria, 2069** – issued by the Judicial Council.
2. **Right of qualified advocates to sit for the District Judge examination** under constitutional standards.

Facts and Petitioner's Claims

- The petitioner challenged the **Judge Appointment (Procedure) Criteria, 2069**, arguing:
 - It was issued without proper legal authority (*ultra vires*) and must be declared **void by certiorari**.
 - Advocates meeting constitutional qualifications should have a legally guaranteed right to appear in the District Judge examination.

Court's Findings

⁵² NKP (2071), Vol. 56, No. 3. Decision No. 9141

In the case concerning the Judge Appointment Criteria, 2069, the Division Bench recognized the issues raised by the petitioner and held that the criteria lacked a legal basis and had been formulated without proper authority, leading to their quashing. Regarding the appointment of advocates as District Judges, the Court emphasized that constitutional provisions mandate compulsory written and oral examinations to ensure that only qualified and capable advocates are appointed. The examination standards including curriculum, questionnaire, examination procedures, pass marks, and interviews must be equivalent to those for gazetted first-class officers under open competition, thereby ensuring a merit-based and transparent selection process. Additionally, the Court issued a mandamus directing the Ministry of Law, Justice, and Parliamentary Affairs to draft legislation promptly to implement these constitutional provisions, thereby paving the way for legal reform to guarantee advocates the right to sit for District Judge examinations.

Legal Principles Established

- **Ultra Vires Doctrine:** Administrative criteria for judge appointments cannot exceed or contradict constitutional authority.
- **Merit-based Judicial Appointments:** Appointment of District Judges must follow a transparent, standardized examination process equivalent to other high-level public service exams.
- **Judicial Mandamus:** Courts can direct the relevant ministry to legislate to ensure constitutional compliance.
- Affirmed advocates' constitutional right to sit for District Judge examinations.

3.16 Case XVI

Advocate Subodh Man Napit v. Office of Prime Minister and Council of Ministers, Singha Durbar et al⁵³

In this writ petition, the petitioner sought annulment of Article 155(1) of the Constitution of Nepal to the extent that it mandated parliamentary hearings for Justices of the Supreme Court, as inserted by the second amendment. The petitioner contended that requiring reconfirmation hearings for Supreme Court justices violated the principle of judicial independence, the spirit of the preamble, and Articles 100, 103(1), 162(3), and 164(1) of the Constitution.

The respondents defended the provision, arguing that judicial review applies only to ordinary law, not to the constitution itself, which is enacted under the constituent power of the people.

The Supreme Court ultimately dismissed the petition, holding that constitutional amendments may be subject to review only if they infringe the basic structure of the constitution. In this

⁵³ NKP (2067), Vol. 42, Ashwin, No. 6, Decision No. 8385

case, the requirement of parliamentary hearings for Supreme Court nominees was considered a political and factual question rather than a judicial one, and thus not justiciable.

Notably, the Court invited *amicus curiae* not only from the Nepal Bar Association and Supreme Court Bar Association but also from academic institutions. Senior advocates or advocates with subject expertise from the bar associations and teaching senior advocates or advocates from Tribhuvan University, Faculty of Law, Nepal Law Campus and Purbanchal University, Kathmandu School of Law, were invited to assist. This recognition of university faculties' role in constitutional adjudication reflects knowledge-sharing practices akin to the Germanic legal tradition, highlighting the contribution of academic expertise in judicial decision-making on constitutional issues.

3.17 Case XVII

Pashupati Karki v. Government of Nepal, Office of the Prime Minister and Council of Ministers et al⁵⁴

Facts:

Section 6 of the Legal Practitioner's Act, 2025 provided for the licensing of individuals as legal practitioners by the Supreme Court upon passing the proficiency certificate level in law. Following amendments to the Nepal Bar Council Act, 2050, the law allowed persons passing the proficiency certificate level to obtain a license as a pleader for a period of up to nine years from the commencement of the Act. The petitioner, having fulfilled the educational qualifications, was unable to secure a license due to the nine-year time limitation. Accordingly, the petitioner sought a writ of certiorari to declare Section 17(2) of the Nepal Bar Council Act, 2050 null and void and to direct the authorities to conduct the licensing examination for pleaders.

Court's Analysis and Decision:

The Court observed that, as in any profession, legal practice requires certain qualifications and experience. The law must prescribe how a qualified person may be registered as a legal practitioner and the professional conduct and ethics they must follow. A person cannot claim the right to practice law without completing the legally prescribed procedures. The court also took the matter into notice that the direct licensing to the person passing proficiency certificate level or bachelor degree in law has been ended with the introduction of entrance examination by the enforcement of Nepal Bar Council Act,

The State has the authority to classify legal practitioners, determine qualifications, and regulate registration to achieve institutional development while balancing individual and institutional interests. The Court so focused on the need for the upgradation of Nepalese lawyers to compete internationally under the WTO regime. It noted the additional functions of lawyers, including certification and authentic translation of deeds as Notaries Public, and highlighted the

⁵⁴ NKP (2067), Vol. 52, Poush No. 9, Decision No. 8455

importance of bringing legal practitioners within the tax net to ensure transparency in legal fees.

The petition was dismissed. The decision recognized the historical evolution of the legal profession in Nepal, affirmed the legislature's exclusive domain over licensing, and reinforced the status of the Nepal Bar Association as the umbrella organization for lawyers, thereby strengthening its institutional legitimacy and authority in regulating the profession.

Here is a structured English summary of the cases you provided, written in the style of Supreme Court reporting:

3.18 Case XVIII

Bashudev Dhungana on behalf of Senior Advocate Mukunda Regmi et al v. Prime Minister, Council of Ministers et al⁵⁵

Facts:

The petition was filed by Bashudev Prasad Dhungana, President of the Nepal Bar Association, on behalf of Senior Advocate Mukunda Regmi, Advocate Sindhu Nath Pyakurel, and Pleader Matrika Prasad Niraula. The petitioners were arrested on 25 February 1990 (046/11/14 BS) while returning from the Supreme Court to New Road. The petition alleged that the detained lawyers were denied food, bed sheets, medicine from home, and access to meet others. The petitioners claimed illegal detention and sought the issuance of a writ of **habeas corpus**.

Respondent's Position:

The administration contended that Mukunda Regmi and Sindhu Nath Pyakurel were in preventive detention due to their involvement in agitating against the Panchayat system and inciting destructive extremist activities. They asserted that all facilities were provided and requested dismissal of the petition.

Court's Holding:

The Court emphasized that preventive detention affecting fundamental rights must comply strictly with statutory provisions. Orders of detention must specify the grounds, be communicated to the person concerned and notice must be served to the District Court within 24 hours. Non-compliance rendered the detention illegal. The Court issued **habeas corpus**, recognizing the initiative of the Bar Association and affirming its protective role over its members. This has strengthened the existence of Bar Association and its parenthood over the members.

3.19 Case XIX

Advocate Ganesh Raj Sharma v. Judge Basudev Sharma, Kathmandu District Court⁵⁶

Facts:

Advocate Ganesh Raj Sharma filed a contempt petition against Judge Basudev Sharma for humiliating him during proceedings for certification of a power of attorney. The petitioner

⁵⁵ NKP (2046), Vol. 31, Chaitra No. 12, Decision No. 4025.

⁵⁶ NKP (2028), Vol. 13, Baisakh No. 1, Decision No. 611.

alleged that the Judge reacted angrily, referred to him as incapable and made inappropriate remarks.

Respondent's Position:

The Judge contended that the petitioner did not attend court as a registered legal practitioner, did not produce proper introduction and never intended to humiliate anyone.

Court's Holding:

The Court highlighted that the relationship between judges and lawyers is fundamental to dispensing justice. Mutual respect is essential; errors in procedural handling do not constitute contempt if there is no intention to humiliate. As the Judge lacked intent, no further proceedings were necessary. The Court recognized the close working relationship between judges and lawyers while affirming accountability for judicial conduct.

3.20 Case XX

Parasuram Banjade on behalf of Yagyamurti Banjade v. Durga Das Shrestha, Bagmati Special Court⁵⁷

Facts:

The petitioner challenged the detention of Yagyamurti Banjade, accused of opening a Nepal Student's Union and conducting trials after office hours. The petitioner argued that legal counsel was denied during evening hours.

Court's Holding:

The Division Bench, comprising Justices Nayan Bahadur Khatri and Ranga Nath Upreti, held that hasty proceedings in the evening violated the principle that personal liberty must be curtailed with utmost care. Constitution ensures the right to consult and be represented by a lawyer. Denying access to counsel infringed this fundamental right.

The decision expanded the right to legal representation and emphasized the duty of authorities to facilitate lawyer appointment for detainees. The decision seems remarkable in the sense that it has laid focus on right to counsel of the prisoner. The decision has contributed for the expansion of the representation via lawyer in the trials and ultimately extended the working area of lawyers laying duty to the enforcers of law to grant opportunity to the prisoners for the appointment of lawyers and get represented by them.

3.21 Case XXI

Supreme Court v. Advocate Kusum Shrestha, License No. 40⁵⁸

Facts:

Contempt proceedings were initiated against Advocate Kusum Shrestha for publicly criticizing an opponent lawyer's influence over the bench. The Court required him to submit an explanation within three days.

Court's Holding:

The Court noted that lawyers must maintain professional conduct. While raising grievances is

⁵⁷ NKP (2027), Vol. 12, Baisakh No. 1, Decision No. 547

⁵⁸ NKP (2023), Vol. 9, Baisakh No. 1, Decision No. 327

permissible, making statements that disrupt the administration of justice may constitute contempt. Kusum Shrestha was found to have caused significant harm to the functioning of the Supreme Court and public confidence in justice.

Punishment:

A fine of Rs. 500/- was imposed under Section 6 of the Supreme Court Act, 2019, considering the offence was committed for the first time.

Observations:

The Court reflected on the role of lawyers as assistants to the bench, emphasizing courage, integrity, and disciplined advocacy. Lawyers must act fearlessly in representing clients, but without disrespecting judicial authority. The decision reinforced the close and cooperative relationship between bench and bar, noting that a competent bar strengthens judicial function and protects individual liberties.

3.22 Case XXII

Ramakanta Neupane v. District Court Jumla and Judge Shyam Kishor Prasad⁵⁹

Facts:

The petitioner, Ramakanta Neupane, a legal practitioner holding a certificate to prepare legal documents, was found to have drafted applications on behalf of both parties in the same case before Jumla District Court on 25 March 1987. The plaintiff in the case was Pema Tamang and the defendant was Tanjan Tamang.

The action was alleged to violate professional ethics under Rule 28 of the Legal Practitioner Regulation, 2025 BS, which explicitly forbids a practitioner from preparing legal documents for both sides of the same case. Following this incident, the District Court Jumla revoked the petitioner's certificate to prepare legal documents.

The petitioner challenged this decision through a writ petition before the Supreme Court, arguing that the revocation was contrary to the principles of natural justice, as he was not given an opportunity to be heard prior to the cancellation of his certificate.

Respondent's Position:

The District Court contended that it was not necessary to provide an opportunity to be heard, as the applications were already in written form before the Court and the petitioner's involvement on both sides was evident. The Jumla district Court admitted that the petitioner was not given a chance to respond or explain.

Court's Holding:

The Supreme Court indicated that the action of revoking Ramakanta Neupane's certificate without allowing him to be heard was procedurally improper and inconsistent with the principles of natural justice. The Supreme Court observed that the petitioner should have been

⁵⁹ NKP (2046), Vol. 31, Jestha No. 2, Decision No. 3729

given the chance to respond and defend himself regarding the allegation that he prepared applications for both parties. As the decision of the Jumla District Court and its written reply do not show that such opportunity was provided, the action to revoke the certificate violated the principles of natural justice.

Accordingly, the Supreme Court holds that the decision of the Jumla District Court to cancel the petitioner's certificate is flawed and cannot be sustained. The Court therefore quashes the decision by issuing a writ of certiorari and directs the Jumla District Court to reconsider the matter in accordance with law.

3.23 Case XXIII

Agent (abhikarta) Narayan Prasad Koirala vs. Syangja District Court et al.⁶⁰

In this case, the petitioner appeared before the Court seeking issuance of a writ of certiorari, quo warranto, and other necessary orders to clarify the legal authority of an "Agent," a category of legal representative at the time.

The Supreme Court observed:

- There exists no legal provision granting an agent the right to appear before a bench as a legal practitioner or to argue on behalf of a party.
- Under the Evidence Act, 2031, inquiries and cross-examinations cannot be conducted by representing a party in the capacity of a legal practitioner.
- The petitioner's activities performed as an agent, according to the then-prevailing laws and regulations, were not hindered by the Nepal Bar Council Act, 1993, or the Code of Conduct schedule.
- Consequently, it cannot be said that the petitioner's constitutional rights were unfairly restricted. Similarly, the orders of the Syangja District Court and the Appellate Court of Pokhara, which annulled the action of the petitioner in the capacity of agent, in the case mentioned in the petition, and the testimony with inquiry and cross-examination, have caused an injury to the petitioner against the law.

The Court concluded that there is no legal basis to confer the rights of a legal practitioner on an agent, and the impugned orders were lawful.

3.24 Case XXIV

Rishi Dhamala et al. vs. Government of Nepal, Home Ministry et al.⁶¹

This case involved a writ petition seeking habeas corpus for the release of individuals allegedly detained illegally by police authorities. One key issue considered was whether the Court may entertain arguments raised orally by the legal practitioner that were not included in the written petition.

The Supreme Court held:

⁶⁰ NKP (2058), Vol. 43, Poush, No. 9, Decision No. 7033

⁶¹ NKP (2066), Vol. 51, Decision No. 8050

- The Court must confine its consideration to the issues explicitly raised in the petition. Matters not mentioned in the petition or the official reply should not influence the proceedings.
- Allowing discussion of issues outside the petition's scope would exceed the legal basis of the writ and create procedural uncertainty.
- Consequently, the petition for habeas corpus was quashed, with the Court noting that the competent authority may investigate and prosecute the alleged detainee lawfully.

The Court established the principle that lawyers must limit their arguments to the issues stated in the petition, and discussion beyond those issues cannot form the basis of judicial decision-making.

3.25 Case XXV

Laxmi Prasad Pokharel vs. Nepal Bar Council et al.⁶².

The petitioner challenged the decision of the Nepal Bar Council (NBC) requiring the collection of a donation for building construction alongside the license renewal fee for lawyers.

Holding:

The Supreme Court held that the collection of building construction donations together with the license update fee is null and void. The Council cannot mandate such donations as a precondition for license renewal.

3.26 Case XXVI

Tulasi Prasad Paudel vs. Nepal Bar Council et al.⁶³

Facts:

Advocate Tulasi Prasad Paudel filed an appeal against the decision of the Nepal Bar Council (NBC) Disciplinary Committee, which had cancelled his license on the ground that he was guilty of a fraudulent offense as determined by a court. One of the pleas raised by the appellant was that the disciplinary action was initiated without a formal complaint against him.

Issue:

Whether a formal complaint is necessary to initiate disciplinary proceedings against a lawyer under the NBC Act, 1993.

Holding:

The Supreme Court upheld the decision of the NBC Disciplinary Committee. It held that under Section 11(1) of the NBC Act, 1993, a formal complaint is not a prerequisite for disciplinary action. Information acquired from any credible source is sufficient to initiate proceedings against a lawyer who is alleged to have violated the Code of Conduct.

⁶² Writ No. 3424 of the year (2061), Date of decision 2061/11/11

⁶³ Criminal Appeal No. 1773 of 1997, Decided 25 April 2002

Principle:

Disciplinary action against lawyers does not require a formal complaint; sufficient information or evidence about misconduct allows the NBC to proceed.

3.27 Case XXVII**Chiranjivi Khatiwada vs. His Majesty's Government and Sita Mahat (complainant)⁶⁴****Facts:**

The petitioner challenged a decision alleged to have been made without completing due process of law in a fraud case. The question arose regarding whether a legal representative could act on behalf of a party without explicit permission of the court.

Issue:

Whether legal practitioners can represent a party in all proceedings without the court's permission.

Holding:

The Supreme Court held that the right to representation is conditional. Section 65(1) of the Courts Management Act and Section 22(1) of the NBC Act, 1993, must be interpreted together. Legal representatives (or "Wares") can act on behalf of a party only with the court's permission. Legal practitioners do not have an automatic right to appear on behalf of a party in all cases under all circumstances.

Principle:

The authority of lawyers to represent parties is subject to the permission of the court and cannot be assumed universally.

⁶⁴ Nepal Kanoon Patrika (2061), Vol. 46, Chaitra No. 12, Decision No. 7476

CHAPTER-IV

ANALYSIS OF CASE LAW ON THE LEGAL PROFESSION IN NEPAL

4.1 Strengths Emerging from the Case Law

- **Judicial protection of access to counsel as a core safeguard**

The COVID-lockdown habeas corpus decision (Adv. Kanti Ram Dhungana/Adv. Chiranjivi Dhakal) demonstrates that the Court treats lawyer–client consultation as a structural element of due process rather than a procedural privilege. This strengthens the profession’s constitutional role as a guarantor of liberty, particularly when executive restrictions expand during emergencies.

- **Clear institutional recognition of professional status and identification**

The summons/notice decision (Adv. Punya Prasad Gautam) affirms that an advocate’s licence number and professional designation have legal reliability within judicial administration. This reflects trust in the Bar Council’s regulatory architecture and supports efficiency by allowing courts to rely on professional registers.

- **Doctrinal discipline against misuse of public interest litigation and extraordinary jurisdiction**

The PIL restraint decisions (Adv. Achyut Prasad Kharel; Rajendra Yadav) strengthen institutional integrity by discouraging legally unfounded filings and unnecessary invocation of writ jurisdiction. The Court links responsible lawyering with judicial efficiency and access to justice for genuine litigants.

- **Reaffirmation of advocates’ duties as officers of the court**

DNF v. Government of Nepal (Decision No. 7961) operationalizes the “officer of the court” concept into practical duties: attendance, cooperation, and non-obstruction. It recognizes that lawyer conduct affects court functioning and litigants’ right to timely justice.

- **Strong enforcement of conflict-of-interest rules and disciplinary accountability**

Chandan Raj Regmi v. Lay Prasad Baskota shows that professional misconduct can be sanctioned even without proven client harm. The Court’s support for Bar Council discipline reinforces ethics as an independent regulatory requirement and confirms that signatures/drafting carry responsibility.

- **Expansion of professional responsibility into victim-sensitive justice administration**

Sapana Pradhan Malla (Decision No. 7880) ties professional duties to privacy, dignity, and access to justice, requiring competence in closed hearings and confidentiality. It also places lawyers within the institutional ecosystem for reform (bar + civil society + state).

4.2 Problems and Doctrinal Tensions Identified

- **Emergency access to counsel remains operationally fragile**

Even though the Court affirmed non-derogable consultation rights, the case demonstrates that police practice can still restrict lawyer access during crises. The gap is not doctrinal, but administrative: lack of enforceable operational protocols at police stations and detention facilities.

- **Over-reliance on professional identifiers without robust verification protocols**

While recognition of licence numbers improves efficiency, procedural reliability can be undermined if courts lack systematic verification mechanisms (e.g., real-time checking of validity, suspension status, or impersonation risks). The case endorses sufficiency, but implementation requires secure verification systems.

- **Persistent abuse of writ/PIL jurisdiction despite judicial warnings**

The Court repeatedly cautions against unnecessary litigation, which implies the problem is recurrent. This points to weak professional screening culture, incentives to file, and limited consequences for frivolous constitutional petitions.

- **Professional misconduct linked to procedural disruption and non-cooperation**

DNF v. Government shows courts still face non-appearance and conduct that delays hearings. This reveals enforcement limitations: ethical norms exist, but day-to-day compliance depends on consistent disciplinary and courtroom management responses.

- **Conflict-of-interest violations indicate compliance weakness in basic ethics**

The Regmi case demonstrates that some advocates still engage in conduct that is plainly prohibited (drafting/assisting both sides). This suggests either (i) inadequate ethical training and supervision, (ii) weak office systems, or (iii) limited perceived risk of detection.

- **Victim confidentiality remains under-legislated and unevenly implemented**

Sapana Pradhan Malla highlights structural gaps: closed hearing provisions exist but are not supported by infrastructure, training, and uniform procedures. Court records, case files, copies, and publication practices often expose identities. This problem affects lawyers directly because they handle pleadings, evidence, copies, and communications that can leak sensitive information.

- **Institutional coherence problems between education, licensing, and professional competence**

Across cases, courts assume Bar Council regulation provides accountability. Yet Nepal’s broader institutional challenge, uneven legal education quality and limited continuing training can weaken the practical competence required for the responsibilities courts articulate.

4.3 Suggested Measures

A. Recommendations for Courts

- **Standard operating protocol for lawyer–client access in detention**

Issue binding administrative directions to all detention facilities requiring scheduled consultation windows, confidentiality protections, and documented reasons for any restriction. Non-compliance should trigger supervisory review and, where necessary, contempt/disciplinary referral.

- **Uniform verification system for advocate identification**

Require courts to verify licence validity through an integrated digital register (or formal written confirmation mechanism) particularly when notices/summonses rely on licence numbers. This prevents misuse and reinforces confidence in professional identification.

- **Procedural filtration for PIL/writ petitions**

Adopt a preliminary screening mechanism (registry-level legal sufficiency check or “maintainability memo”) for PIL and extraordinary jurisdiction filings. This is not merits-based adjudication, but a structured check for jurisdictional basis, standing, and legal foundation.

- **Closed hearing and confidentiality management protocols**

Courts should institutionalize closed-hearing practice beyond physical closure: sealed record procedures, anonymized case numbering, restricted copying, controlled publication standards, and protected witness examination formats.

B. Recommendations for Nepal Bar Council / Nepal Bar Association

- **Mandatory continuing professional development (CPD)**

Introduce annual CPD requirements on: conflicts of interest, client confidentiality, courtroom ethics, and PIL/writ standards. Renewal of practice certificate can be linked to minimum CPD hours.

- **Conflict-check and file-management standards**

Require advocates/law firms to maintain basic conflict-check systems (even a simple register) to prevent drafting/representation for both sides. In disciplinary matters, absence of a conflict-check system may be treated as an aggravating factor.

- **Disciplinary transparency and deterrence**

Publish anonymized disciplinary summaries (facts, rule breached, sanction) regularly. This increases compliance by clarifying what conduct is punishable and why.

- **Professional responsibility guidance for PIL**

Issue practice notes that set minimum standards for PIL/writ filing: legal basis, standing explanation, relief feasibility, and disclosure of alternative remedies. Repeated frivolous filing should trigger professional review.

C. Recommendations for Police and Executive Agencies

- **Detention consultation rules**

Adopt internal police directives ensuring advocates' access, with health and security restrictions limited to what is necessary and proportionate. Maintain consultation logs and allow judicial inspection where disputes arise.

- **Confidential handling of sensitive victims from FIR stage**

Implement confidentiality protocols beginning at complaint registration: restricted access to identity details, controlled circulation of documents, and penalties for unauthorized disclosure.

D. Recommendations for Legal Education Institutions

- **Curriculum alignment with professional ethics and practice**

Strengthen clinical legal education and professional responsibility courses. Include practical training on drafting, conflicts, confidentiality, and court etiquette.

- **Bridging training for new entrants**

Provide structured apprenticeship or supervised practice modules before full independent practice, especially for litigation roles.

4.4 Conclusion

This term paper demonstrates that the legal profession in Nepal has developed from customary and court-centered representation into a formally regulated institution grounded in statutory frameworks, professional organization, and judicial oversight. The historical trajectory from pre-codification dispute settlement, through the Muluki Ain's procedural structuring, to modern regulation under the Legal Practitioners Act, the Nepal Bar Council Act, and professional codes of conduct, shows that advocacy is no longer merely an occupational activity but an institutional component of the justice system.

The case law analysed in this study confirms that courts in Nepal conceptualize advocates through a dual lens: ***as autonomous representatives of clients*** and ***as officers of the court*** with independent duties toward justice administration. Supreme Court further clarifies enforceable ethical boundaries: conflicts of interest, non-cooperation with the bench, disruption of hearings, and misuse of judicial process are treated as professional failures that undermine adjudication and public confidence.

At the same time, the cases reveal persistent gaps between doctrinal standards and operational realities. Restrictions on access to counsel during emergencies, repeated warnings against unnecessary writ litigation, courtroom disruption linked to non-appearance, conflict-of-interest violations, and uneven implementation of confidentiality protections for vulnerable litigants indicate that professional ethics and constitutional ideals require stronger institutional support to become consistently effective in practice. The recommendations proposed in this paper therefore emphasize practical institutional measures: court protocols for detention consultation and confidentiality management, verification systems for professional identification, procedural filtration of extraordinary jurisdiction petitions, continuing professional development and conflict-check systems under Bar Council oversight, executive compliance mechanisms in detention and investigation processes, and curricular reinforcement of professional responsibility within legal education.

Overall, the study concludes that Nepalese jurisprudence treats the legal profession as a justice-oriented institution whose legitimacy depends on both ***protection and restraint: protection through guaranteed professional access and recognition***, and ***restraint through ethical discipline, procedural fidelity, and responsible invocation of judicial power***. The durability of public trust in the legal system depends on how effectively courts, regulators, and practitioners internalize and implement these standards in daily legal practice.